

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

08/26/2026
Clerk of the Court
BY: RONNIE OTERO
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

OBJECTIONS / DISAPPROVAL

CRC 3.1312(a)

PROPOSED ORDER

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under California Rules of Court, rule 3.1312, subdivision (a); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure sections 391 through 391.7, 916, and 1049 as applicable to the proposed order opposed.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court,

1 rules 2.118 and 2.119; this paper does not present any of those grounds.

2 4. The Court's authority to consider the substance is under California Rules of Court, rule
3 3.1312, and Code of Civil Procedure sections 391 through 391.7, 916, and 1049.

4 5. This paper is submitted August 26, 2026, as Plaintiff's written disapproval under rule 3.1312(a)
5 of Defendant's [Proposed] Order on Defendant's Motion to Declare Plaintiff a Vexatious Lit-
6 igant, served July 21, 2026 with the moving papers, and of any re-lodgment of that form after
7 the August 26, 2026 hearing. It does not replace Plaintiff's July 21-22, 2026 objections to
8 the same proposed order. If Defendant later serves a different proposed order, Plaintiff will
9 notify disapproval or approval within five days after service as rule 3.1312(a) requires.

10 Hearing: August 26, 2026, 9:00 a.m., Dept. 302.

11 **PLAINTIFF'S OBJECTIONS AND DISAPPROVAL UNDER CALIFORNIA RULES OF**
12 **COURT, RULE 3.1312(a), TO DEFENDANT'S [PROPOSED] ORDER ON MOTION TO**
13 **DECLARE PLAINTIFF A VEXATIOUS LITIGANT**

14 **I. INTRODUCTION AND RULE 3.1312 POSTURE**

15 Plaintiff Franciscus Dylan Rosario does not approve Defendant CSAA Insurance Exchange's pro-
16 posed order as conforming to any ruling of this Court. Failure to notify within the time required is
17 deemed approval. (Cal. Rules of Court, rule 3.1312(a).) These objections are served on counsel
18 and lodged with Department 302 so the Court has Plaintiff's own statement, not only a summary
19 prepared by the moving party under rule 3.1312(b).

20 The proposed order opposed is the three-page form served July 21, 2026, titled [Proposed] Order
21 on Defendant's Motion to Declare Plaintiff a Vexatious Litigant. After recitals, it would, if signed:

- 22 1. State "Defendant's Motion is Granted."
23 2. Declare Plaintiff a vexatious litigant "pursuant to Code of Civil Procedure section 391(b)."
24 3. Order Plaintiff to furnish security "in the amount of \$_____" under section 391.3 "in all
25 pending actions in any Court in the State of California."
26 4. Require posting within 15 days "in any pending action" and "concurrently with any new
27 actions he files in any Court in the State of California."
28 5. Provide that "any filings Plaintiff submits to the Court are subject to Court screening and

1 approval, prior to being served on any party to any Action Plaintiff initiates.”

2 It then leaves blank “IT IS FURTHER ORDERED” lines.

3 This paper addresses conformity, notice, statutory authority, and jurisdiction. It is not a second
4 opposition. Plaintiff incorporates the July 21-22, 2026 opposition cohort, the August 20, 2026
5 supplemental papers, Plaintiff’s already-lodged [Proposed] Order Denying the motion, and the
6 oral record of August 26, 2026, and preserves every substantive objection.

7 Rule 3.1312(a) asks whether the proposed order conforms to the Court’s order. Plaintiff asks
8 the Court to compare each quoted paragraph to the August 26, 2026 minute order before signing
9 anything. Terms the minutes do not contain do not conform.

10 **II. THRESHOLD: THE COURT SHOULD NOT SIGN A GRANT FORM** 11 **WHILE THE APPEALS ARE PENDING**

12 The Court should not sign any grant, designation, security, or screening form while three appeals
13 remain pending.

14 **A. Section 391.1(a) and the stay use the same word.** Section 391.1, subdivision (a), authorizes
15 a defendant to move for security “[i]n any litigation pending in any court of this state, at any time
16 until final judgment is entered.” If this litigation is not pending, the security track is unavailable
17 by its own text. If it is pending, section 1049 keeps an action pending until final determination
18 on appeal, and section 916 stays proceedings on the order appealed from and upon the matters
19 embraced therein or affected thereby. Defendant cannot treat the case as non-pending to escape
20 the stay and as pending to reach security. Those are the same word in the same statutory scheme.
21 Notice of Appeal from the July 1, 2026 order in this Case No. CGC-25-631802 was filed August
22 14, 2026 (File and ServeXpress Tx 80347004). Notice of Automatic Stay was filed the same day
23 (Tx 80347745). Companion Case No. CGC-25-631801 is also on appeal (Tx 80347363). The
24 personal-injury judgment in Case No. CGC-21-594102 remains pending in appeal A173827.

25 **B. “Ancillary” does not fit a motion that requires a merits finding.** Defendant argues the
26 vexatious motion is ancillary and may proceed regardless of the stay. Collateral matters such as
27 attorney fees and sanctions may proceed during an appeal because they do not undermine the
28 finality of the merits. (*Day v. Collingwood* (2006) 144 Cal.App.4th 1116, 1125; *Pittman v. Beck*

1 *Park Apartments Ltd.* (2018) 20 Cal.App.5th 1009, 1022-1025.) Section 391.3, subdivision (a),
2 is different. It requires a finding that there is no reasonable probability the plaintiff will prevail
3 in the litigation against the moving defendant. That is a merits determination on the same claims
4 on appeal. A motion that cannot be granted without adjudicating the merits is not collateral to the
5 merits.

6 *Pittman* holds that a plaintiff's own voluntary dismissal under section 581 does not divest the
7 trial court of jurisdiction over a vexatious litigant motion already on file. Plaintiff has dismissed
8 nothing. *Pittman* does not cite section 916 or section 1049. Its rationale is anti-evasion. Perfecting
9 an appeal is a right, and the stay in this case is the Court's own. *Pittman* footnote 5 states that the
10 record there did not reflect whether the trial court proceeded under section 391, subdivision (b)(1)
11 or (b)(3). *Pittman* therefore supplies no predicate for Paragraph 2 of Defendant's proposed order.
12 At the April 12, 2010 hearing recounted in *Pittman*, the plaintiff stated that cited cases were pend-
13 ing on appeal, and the trial court continued the vexatious litigant hearing pending the outcome of
14 those appeals. (20 Cal.App.5th at p. 1014.) Continuance is available here on the defense's own
15 authority.

16 **C. The Varian test is effectiveness of the appeal.** *Varian Medical Systems, Inc. v. Delfino* (2005)
17 35 Cal.4th 180 holds that whether a proceeding is embraced in or affected by an appeal depends
18 on whether it would have any effect on the effectiveness of the appeal. If so, the proceedings are
19 stayed. The automatic stay divests the trial court of fundamental jurisdiction over those matters,
20 and resulting orders are void. A designation that treats the July 1, 2026 order as a final adverse
21 determination would affect the effectiveness of the appeal from that order. Section 916 is not
22 written to turn on whether the anti-SLAPP motion was granted or denied.

23 Plaintiff does not consent. Fundamental jurisdiction cannot be conferred by consent, waiver, or
24 estoppel. If the Court is not prepared to deny the motion, the conforming alternative is a contin-
25 uance until final determination of the pending appeals, with no blank bond, no statewide security,
26 and no pre-service screen.

III. THE NOTICE DOES NOT SUPPORT PARAGRAPHS 3 THROUGH 5

The Notice of Motion, served July 21, 2026, asked for two things: (1) a declaration that Plaintiff is a vexatious litigant under section 391, subdivision (b); and (2) an order that Plaintiff furnish security under section 391.3. The stated grounds were that Plaintiff “has repeatedly relitigated issues already decided by this Court and has engaged in a pattern of filing unmeritorious and duplicative discovery motions.”

Relief cannot exceed the notice. Paragraphs 3 through 5 of the proposed order would impose a blank statewide bond, concurrent security with any new California action, and universal pre-service screening. None of that was noticed. *Shalant v. Girardi* (2011) 51 Cal.4th 1164, 1169-1171, treats the security track (sections 391.1, 391.3, and 391.4, operating in pending litigation) and the prefiling track (section 391.7, prospective, leave to file committed to the presiding judge) as distinct. *Pittman* footnote 2 quotes that same two-track structure. A trailing paragraph cannot collapse them.

IV. CONTINGENT OBJECTIONS TO ANY MODIFIED GRANT FORM

Plaintiff disapproves the July 21 form and any modified proposed order that grants the same principal relief in whole or in part. The objection is to the relief category as well as to the current wording. A modified grant form still does not conform if it would:

1. Designate Plaintiff a vexatious litigant without identifying the statutory predicate and elements under section 391, subdivision (b);
2. Require any security without both findings required by section 391.3, subdivision (a);
3. Require security while the section 916 stay and section 1049 finality objections remain pending;
4. Require security beyond this action or beyond the moving defendant;
5. Require security in other pending actions;
6. Require security concurrently with any new action;
7. Impose prefiling, pre-service, filing, or service screening under any label;

8. Place screening in this department rather than with the presiding judge, presiding justice, or reviewing court required by the applicable statute;
 9. Apply to appeals already perfected;
 10. Treat any appealed order or judgment as final despite pending appeals;
 11. Grant relief beyond the notice of motion; or
 12. Fail to preserve Plaintiff's section 916 and section 1049 jurisdiction and finality objections.
- Deleting the words "all pending actions," filling in a bond amount, or relabeling screening as approval, leave, review, or another equivalent term does not cure the relief defect if the modified order still grants the same overbroad relief.

V. OBJECTIONS TO SPECIFIC PARAGRAPHS

OBJECTION TO PARAGRAPH 1 ("DEFENDANT'S MOTION IS GRANTED.")

That line recites no finding, no subdivision of section 391(b), and no probability determination under section 391.3. Rule 3.1312 permits an order that conforms to what the Court actually said. If the August 26, 2026 minute order does not grant the motion in full, Paragraph 1 does not conform. Strike Paragraph 1.

OBJECTION TO PARAGRAPH 2 (DESIGNATION "PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 391(B)")

Section 391, subdivision (b), identifies four predicates. Paragraph 2 names none of them, recites none of the elements, and ties no finding to proof. An order that does not identify the predicate does not support security, screening, or review. (*Pittman*, 20 Cal.App.5th 1009, fn. 5.)

Subdivision (b)(1) requires at least five litigations finally determined adversely within seven years. That is not this record. Subdivision (b)(2) requires relitigation, after a final determination, of the same cause of action or the same issues, against the same defendant as to whom that litigation was finally determined. CSAA Insurance Exchange was not the personal-injury defendant; the primary right here is claims handling, not negligent driving; and with the appeals pending, section 1049 means nothing is finally determined. Subdivision (b)(3) reaches repeated unmeritorious filings or tactics that are frivolous or solely intended to cause delay. Volume is not the element. (*Morton v.*

1 *Wagner* (2007) 156 Cal.App.4th 963, 971-972.)

2 Strike Paragraph 2 unless the Court makes an express finding under a named subdivision, with the
3 statutory elements recited.

4 **OBJECTION TO PARAGRAPH 3 (BLANK SECURITY “IN ALL PEND-**
5 **ING ACTIONS IN ANY COURT IN THE STATE OF CALIFORNIA”)**

6 Three independent defects.

7 First, the amount is “\$_____”. Section 391.3 security, when available, is a determined sum for
8 the moving defendant in the action in which the motion is made. A blank is not an order.

9 Second, “all pending actions in any Court in the State of California” is not section 391.3 relief.
10 That statute is case-specific. Statewide reach belongs to section 391.7, which this motion did not
11 notice and which this department does not administer.

12 Third, section 391.3, subdivision (a), requires two findings before any security: that the plaintiff is
13 a vexatious litigant, and that there is no reasonable probability of prevailing. Paragraph 3 recites
14 neither.

15 Strike Paragraph 3.

16 **OBJECTION TO PARAGRAPH 4 (15-DAY POSTING; CONCURRENT**
17 **POSTING WITH ANY NEW CALIFORNIA ACTION)**

18 This paragraph depends on the invalid Paragraph 3 bond. The second clause, requiring security
19 “concurrently with any new actions he files in any Court in the State of California,” is a statewide
20 financial barrier on unfiled cases. That is a de facto prefiling order. Section 391.7 is prospective,
21 applies to new litigation, and sends leave to file to the presiding judge under subdivision (b), and
22 only after a vexatious finding. This department cannot assume that function in a trailing paragraph.
23 The clause would also operate on appeals already perfected and on any new action on a different
24 primary right against a different defendant. A prospective order cannot reach an appeal already per-
25 fected. Screening of appellate filings is administered by the reviewing court under section 391.7,
26 subdivisions (b) and (c). (*Pittman*, 20 Cal.App.5th at pp. 1017-1018 [reviewing court applied
27 section 391.7 to the appeal before it].)

1 Strike Paragraph 4.

2 **OBJECTION TO PARAGRAPH 5 (UNIVERSAL PRE-SERVICE SCREEN-**
3 **ING)**

4 Paragraph 5 states that “any filings Plaintiff submits to the Court are subject to Court screening and
5 approval, prior to being served on any party to any Action Plaintiff initiates.” That is universal pre-
6 service screening. It is not in the Notice of Motion. It is not section 391.3. It is not a conforming
7 section 391.7 order.

8 Section 391.7 screens the commencement of new litigation, by the presiding judge or presiding
9 justice, under a merit and non-harassment standard, with statutory stay mechanics. Paragraph 5
10 omits all of that. It reaches “any filings,” not new litigation. It conditions service, not filing. It is
11 not limited to this Case No. CGC-25-631802.

12 Due process does not permit a status-based statewide filing screen entered as a trailing paragraph
13 without compliance with the statute that creates that remedy. (*Shalant*, 51 Cal.4th at pp. 1169-
14 1171.) Access-restricting status remedies must rest on the predicates the Legislature wrote.

15 Strike Paragraph 5.

16 **OBJECTION TO THE BLANK “IT IS FURTHER ORDERED” LINES**

17 Open lines after a grant invite relief the Court did not announce and the motion did not notice.
18 Strike them. If the Court has additional terms, they should be written out and served under rule
19 3.1312(a) so Plaintiff can approve or disapprove them.

20 **VI. WHAT WOULD CONFORM**

21 An order that matches a stay, or that denies designation, security, and screening, conforms. Plain-
22 tiff’s already-lodged [Proposed] Order Denying Defendant’s Motion is the conforming alternative.
23 If the Court is not prepared to deny, a continuance of the section 391 motion until final determi-
24 nation of the pending appeals conforms. A blank-amount, all-actions, statewide, pre-service order
25 does not.

VII. RESERVATION

Plaintiff does not consent to the relief in Defendant's proposed order, does not waive any objection to the motion or to any signed order, and preserves all objections for review, including that any grant entered while the appeals are pending is void for lack of fundamental jurisdiction. (*Varian*, 35 Cal.4th at pp. 196-200.) Failure to itemize a given word is not approval of it.

If Defendant serves a modified proposed order, Plaintiff expressly reserves the right to approve or disapprove that modified text within five days after service under rule 3.1312(a). This reservation does not withdraw the objections made now to any order that grants the same principal relief categories in whole or in part.

VIII. REQUEST

Plaintiff respectfully requests that the Court:

1. Sustain the foregoing objections and treat this paper as timely disapproval under rule 3.1312(a);
2. Decline to sign Defendant's proposed order;
3. Enter an order denying the motion to declare Plaintiff a vexatious litigant and denying security, or, if the Court is not prepared to deny, continue the motion until the pending appeals are finally determined;
4. Decline any modified order granting designation, security, prefiling review, pre-service screening, new-action security, statewide security, or relief affecting pending appeals;
5. Direct that any order actually entered be limited to terms the Court announced, with no blank amount, no statewide bond, no concurrent new-action security, and no universal pre-service screen.

Dated: August 26, 2026



Franciscus Dylan Rosario
Plaintiff, In Pro Per

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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

DECLARATION OF COMPLIANCE

CRC 2.256 / 3.1110

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under California Rules of Court, rule 2.256, subdivision (b); California Rules of Court, rule 2.257; California Rules of Court, rule 3.1110, subdivision (f)(4); and Code of Civil Procedure section 2015.5.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

1 4. The Court’s authority to consider the substance is under Code of Civil Procedure section
2 1010.6, subdivision (b) (compliance attestation in connection with e-filing).

3 5. This paper accompanies Plaintiff’s August 26, 2026 objections and disapproval under Cali-
4 fornia Rules of Court, rule 3.1312, subdivision (a), to Defendant’s [Proposed] Order on the
5 motion to declare Plaintiff a vexatious litigant under Code of Civil Procedure sections 391
6 through 391.7, Case No. CGC-25-631802, hearing August 26, 2026, 9:00 a.m., Dept. 302.

7 Hearing: August 26, 2026, 9:00 a.m., Dept. 302.

8 I, Franciscus Dylan Rosario, Plaintiff in pro per, declare:

9 **I. PLEADING-PAPER AND FIRST-PAGE FORMAT**

10 1. **California Rules of Court, rules 2.100 through 2.111.** Each paper in this CRC 3.1312
11 objections cohort is rendered on pleading paper with court caption, line numbering where ap-
12 propriate, page numbering, readable type, and first-page formatting consistent with California
13 Rules of Court, rules 2.100 through 2.111.

14 **II. ELECTRONIC FILING AND FORMAT**

- 15 1. **CRC 2.256(b), text-searchable PDFs and OCR.** Each generated PDF in this filing cohort is
16 text-searchable. Where an exhibit source is image-only, OCR must be applied before upload
17 or chambers lodging.
- 18 2. **CRC 2.257, signatures.** Declarations and service papers in this cohort include the declarant’s
19 electronic signature or signature image and are intended to comply with CRC 2.257.
- 20 3. **CRC 3.1110(f)(4), bookmarks.** No new exhibit volume is lodged with this three-paper co-
21 hort. Each PDF in this cohort is a single titled paper.
- 22 4. **SFTC Local Rule electronic filing hygiene.** The filing PDFs should be uploaded without ex-
23 ternal hyperlink dependencies, active annotations, hidden layers, or unflattened transparency.

24 **III. SERVICE**

25 1. **CCP sections 1010.6, 1013, 1013a, and 1015; CRC 1.21.** Service of this CRC 3.1312 cohort
26 is by electronic mail on the Porter Scott service list identified in the accompanying POS-050,
27 including ctapp@porterscott.com and toconnell@porterscott.com.

IV. CRC 3.1312 OBJECTION MATERIALS

1. **California Rules of Court, rule 3.1312, subdivision (a); Code of Civil Procedure sections 391 through 391.7.** The lead paper is Plaintiff's Objections and Disapproval under rule 3.1312(a) to Defendant's [Proposed] Order on the vexatious-litigant motion, with this declaration of compliance and POS-050. The packet does not replace the July 21-22, 2026 vexatious-litigant opposition cohort or the July 21-22 objections to the same proposed order.
2. **No new exhibit dump.** This cohort does not attach a new exhibit volume. It cross-cites papers already lodged in this action.

V. EXHIBIT AND HASH HANDLING

1. Before upload or chambers lodging, Plaintiff will verify page count, OCR status, bookmark status, hyperlink status, byte size, and SHA-256 hash for each PDF in this cohort actually lodged with the court.
2. This declaration is limited to the three papers identified in the accompanying POS-050, and does not request any relief from Department 302 beyond those papers.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on August 26, 2026 at Rohnert Park, California.

Dated: August 26, 2026



Franciscus Dylan Rosario
Plaintiff, In Pro Per

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**SUPERIOR COURT OF THE STATE OF CALIFORNIA
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Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

PROOF OF SERVICE

POS-050

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

PROOF OF SERVICE (POS-050)

Case Name: FRANCISCUS DYLAN ROSARIO v. CSAA INSURANCE EXCHANGE, et al.

Case Number: CGC-25-631802

Hearing line: August 26, 2026, 9:00 a.m., Dept. 302

Documents Served:

1. Plaintiff's Objections and Disapproval under California Rules of Court, rule 3.1312(a), to Defendant's [Proposed] Order on Motion to Declare Plaintiff a Vexatious Litigant (Code Civ. Proc., secs. 391 through 391.7).
 2. Declaration of Compliance with California Rules of Court, rules 2.256 and 3.1110.
 3. This Proof of Service (POS-050).
-

1 **SERVICE INFORMATION**

2 **Date of Service:** August 26, 2026

3 **Method of Service:** Electronic service via email pursuant to Code of Civil Procedure section
4 1010.6 and California Rules of Court, rule 1.21.

5 **Electronic Service Address of Server:** soltrinox@gmail.com
6 _____

7 **PERSONS SERVED**

- 8 1. Chad S. Tapp, Esq. (also appearing as Mark G. / Chad S. Tapp on Porter Scott filings), Porter
9 Scott, P.C.; electronic service address: ctapp@porterscott.com; consent on file per seq 009.
- 10 2. Tyler J. O'Connell, Esq., Porter Scott, P.C.; electronic service address: toconnell@porterscott.com;
11 consent on file per seq 009.
- 12 3. Mason Schubert, Esq., Porter Scott, P.C.; electronic service address: mschubert@porterscott.com;
13 consent on file per seq 009.
- 14 4. Sarah J. Blithe, Esq., Porter Scott, P.C.; electronic service address: sblithe@porterscott.com;
15 consent on file per seq 009.

16 Primary noticed service addresses on the moving papers: ctapp@porterscott.com and toconnell@porterscott.com.
17 _____

18 **DECLARATION**

19 I, Franciscus Dylan Rosario, declare: I am the Plaintiff in the above-captioned action. I am over
20 the age of 18 and competent to make this declaration. On the date of service above, I caused to
21 be served by electronic mail the documents identified above on the persons listed above at their
22 respective electronic service addresses. Each person listed has consented to electronic service per
23 Code of Civil Procedure section 1010.6, as documented by the Consent to Electronic Service filed
24 in this case at seq 009 (March 6, 2026).

25 I declare under penalty of perjury under the laws of the State of California that the foregoing is
26 true and correct.

27 Executed on August 26, 2026 at Rohnert Park, California.

1 Dated: August 26, 2026

2 

3 Franciscus Dylan Rosario
4 Plaintiff, In Pro Per

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